PROPOSITION 319

SENATE CONCURRENT RESOLUTION 1004

A CONCURRENT RESOLUTION

ENACTING AND ORDERING THE SUBMISSION TO THE PEOPLE OF A MEASURE RELATING TO PHOTO ENFORCEMENT SYSTEMS.

Be it resolved by the Senate of the State of Arizona, the House of Representatives concurring:

1. Under the power of the referendum, as vested in the Legislature, the following measure, relating to photo enforcement systems, is enacted to become valid as a law if approved by the voters and on proclamation of the Governor:

AN ACT

AMENDING SECTION 28-1201, ARIZONA REVISED STATUTES; AMENDING TITLE 28, CHAPTER 3, ARTICLE 21, ARIZONA REVISED STATUTES, BY ADDING SECTION 28-1207; RELATING TO PHOTO ENFORCEMENT.

Be it enacted by the Legislature of the State of Arizona:

Section 1. Section 28-1201, Arizona Revised Statutes, is amended to read:

28-1201. Definition of photo enforcement system

In this article, unless the context otherwise requires, "photo enforcement system" ~~has the same meaning prescribed in section 28-601~~ MEANS A DEVICE SUBSTANTIALLY CONSISTING OF A RADAR UNIT OR SENSOR LINKED TO A CAMERA OR OTHER RECORDING DEVICE THAT PRODUCES ONE OR MORE PHOTOGRAPHS, MICROPHOTOGRAPHS, VIDEOTAPES OR DIGITAL OR OTHER RECORDED IMAGES OF A VEHICLE'S LICENSE PLATE FOR THE PURPOSE OF IDENTIFYING VIOLATORS OF ARTICLE 3 OR 6 OF THIS CHAPTER OR OF A CITY OR TOWN ORDINANCE FOR EXCESSIVE SPEED OR FAILURE TO OBEY A TRAFFIC CONTROL DEVICE.

Sec. 2. Title 28, chapter 3, article 21, Arizona Revised Statutes, is amended by adding section 28-1207, to read:

28-1207. Photo enforcement system; voter approval requirement

A. A LOCAL AUTHORITY OR AN AGENCY OF THIS STATE MAY NOT USE A PHOTO ENFORCEMENT SYSTEM TO IDENTIFY VIOLATORS OF ARTICLE 3 OR 6 OF THIS CHAPTER OR OF A CITY OR TOWN ORDINANCE FOR EXCESSIVE SPEED OR FAILURE TO OBEY A TRAFFIC CONTROL DEVICE, UNLESS, ON OR BEFORE DECEMBER 31, 2026, THE LOCAL AUTHORITY OR THE AGENCY OF THIS STATE HAS A SIGNED CONTRACT TO OPERATE A PHOTO ENFORCEMENT SYSTEM.

B. NOTWITHSTANDING SECTION 16-204, A LOCAL AUTHORITY THAT HAS A SIGNED CONTRACT TO OPERATE A PHOTO ENFORCEMENT SYSTEM PURSUANT TO SUBSECTION A OF THIS SECTION SHALL SEEK APPROVAL OF THE VOTERS OF THE LOCAL AUTHORITY AT THE NEXT GENERAL ELECTION IMMEDIATELY AFTER THE EFFECTIVE DATE OF THIS SECTION TO CONTINUE OPERATION OF THE PHOTO ENFORCEMENT SYSTEM.

C. IF THE LOCAL AUTHORITY DOES NOT RECEIVE VOTER APPROVAL TO OPERATE A PHOTO ENFORCEMENT SYSTEM PURSUANT TO SUBSECTION B OF THIS SECTION, THE LOCAL AUTHORITY SHALL CEASE OPERATIONS OF THE PHOTO ENFORCEMENT SYSTEM WITHIN NINETY DAYS AFTER THE GENERAL ELECTION IN WHICH THE VOTERS FAILED TO APPROVE THE OPERATION OF THE PHOTO ENFORCEMENT SYSTEM.

D. IF THE LOCAL AUTHORITY RECEIVES VOTER APPROVAL TO OPERATE A PHOTO ENFORCEMENT SYSTEM PURSUANT TO SUBSECTION B OF THIS SECTION, THE LOCAL AUTHORITY MAY CONTINUE TO OPERATE THE PHOTO ENFORCEMENT SYSTEM FOR A PERIOD OF TEN YEARS AND ALL OF THE FOLLOWING APPLY:

1. NOTWITHSTANDING SECTION 16-204, THE LOCAL AUTHORITY SHALL SUBMIT TO THE LOCAL AUTHORITY'S VOTERS THE QUESTION OF THE CONTINUED OPERATION OF THE PHOTO ENFORCEMENT SYSTEM FOR AN ADDITIONAL TEN YEARS THAT SHALL BE PLACED ON THE GENERAL ELECTION BALLOT FOR THE GENERAL ELECTION THAT IS HELD TEN YEARS

AFTER THE PREVIOUS VOTE THAT APPROVED THE OPERATION OF THE PHOTO ENFORCEMENT SYSTEM.

2. IF THE LOCAL AUTHORITY RECEIVES VOTER APPROVAL AT THE ELECTION PRESCRIBED BY PARAGRAPH 1 OF THIS SUBSECTION, THE LOCAL AUTHORITY MAY CONTINUE TO OPERATE THE PHOTO ENFORCEMENT SYSTEM FOR A PERIOD OF TEN YEARS AND SHALL SUBMIT TO THE LOCAL AUTHORITY'S VOTERS THE QUESTION OF THE CONTINUED OPERATION OF THE PHOTO ENFORCEMENT SYSTEM EVERY TEN YEARS THEREAFTER AS PRESCRIBED BY THIS SECTION.

Sec. 3. Legislative intent

Pursuant to section 41-1107, Arizona Revised Statutes, the legislature intends to:

1. Keep the enforcement of the laws in this state in the hands of trained law enforcement officers who are authorized by the people of this state to enforce the laws.

2. Protect the citizens of this state from the abuses that accompany the outsourcing of law enforcement to private, for-profit entities.

3. Ensure that the purpose of law enforcement remains to serve and protect and not to generate revenue for governments.

2. The Secretary of State shall submit this proposition to the voters at the next general election as provided by article IV, part 1, section 1, Constitution of Arizona.

ANALYSIS BY LEGISLATIVE COUNCIL

Proposition 319 would prohibit a local authority or state agency from using a photo enforcement system for speeding or traffic control device violations unless the local authority or state agency has a contract in place before December 31, 2026 to operate a photo enforcement system. If the local authority has a photo enforcement system contract in place before December 31, 2026, Proposition 319 would require the local authority to seek approval from the voters at the next general election to continue to operate the photo enforcement system. If the voters fail to approve the continued operation of the existing photo enforcement system, Proposition 319 would require that the local authority cease operations of the photo enforcement system within 90 days after the election. If the voters approve the continued operation of the existing photo enforcement system, Proposition 319 would allow the continued operation of the photo enforcement system for a period of 10 years. At the conclusion of each 10-year period, the local authority must seek approval from the voters for the continued operation of the photo enforcement system for a period of an additional 10 years.

Notice: Pursuant to proposition 105 (1998), these measures cannot be changed in the future if approved on the ballot except by a three-fourths vote of the members of each house of the legislature and if the change furthers the purpose of the original ballot measure, by an initiative petition or by referring the change to the ballot.

ARGUMENTS "FOR" PROPOSITION 319

Vote YES on Prop 319 — these predatory, for-profit spy cameras are an unconstitutional assault on every Arizona driver's rights and must be banned. Enough is enough: vote YES and stop the government from treating law-abiding citizens like ATM machines."

Emerson Jones, Phoenix

Vote YES on Prop 319 it is time to end the use of profit-driven, private camera systems that strip Arizona drivers of their due process rights and turn our roads into revenue machines. Arizona voters deserve control over how their communities are policed, and this proposition puts that power exactly where it belongs: in your hands.

Vera is the U.S. automated enforcement industry. Verra acquired both American Traffic Solutions (ATS) and Redflex, making them the largest photo radar and red-light enforcement provider in North America. They have an office in Mesa, AZ.
Verra Mobility, Traffic cam company

Mark Lewis, teachersfuture@gmail.com, Scottsdale

Vote YES on Proposition 319 – Stop Unauthorized Government Surveillance on Our Roads

Arizona's photo enforcement cameras represent a serious threat to our constitutional rights. These systems enable unauthorized surveillance of law-abiding citizens, tracking our movements and recording our daily lives without warrants or sufficient oversight. Such blanket monitoring violates our fundamental rights to privacy and freedom from unreasonable government intrusion protected by the Arizona and U.S. Constitutions. Proposition 319 puts an end to this overreach by prohibiting new photo enforcement systems and requiring voter approval for existing ones.

These cameras do far more than catch traffic violations—they create a pervasive surveillance network that collects extensive data on citizens. Citizen video records tied to these systems are often not secure from third parties, exposing personal information to potential misuse or breaches. Arizonans should not have to surrender their privacy every time they drive on public roads. Government should not treat every driver as a suspect under constant watch.

Proposition 319 restores accountability to the people. It bans new automated camera systems and requires cities and towns with existing contracts to obtain voter approval at the ballot box. If voters reject them, the cameras must be removed within 90 days. Approved programs would need re-approval every ten years. This measure returns power to Arizona voters instead of unelected officials and special interests.

Real public safety comes from trained law enforcement officers exercising judgment—not unaccountable machines feeding a surveillance state. Photo cameras erode trust, distract from effective policing, and prioritize control over liberty.

Protect our constitutional rights. Stop the unauthorized surveillance. Vote YES on SCR 1004 and defend privacy and freedom on Arizona's roads.

Kristin Baumgartner, Prescott

ARGUMENTS "AGAINST" PROPOSITION 319

Vote No on Proposition 319 Because Red-Light Cameras Save Lives

Nobody likes getting a ticket in the mail. And we totally get why lots of people are frustrated with cities that pepper their roads with speed cameras on streets with unreasonably low speed limits, like Paradise Valley does.

But this proposition goes too far.

Why? Because it stops cities and towns from installing lifesaving red-light cameras, not just the photo radar speed traps.

Red-light cameras aren't the same as speed cameras. They're placed at dangerous intersections to stop people from running red lights. That matters because red-light runners cause violent T-bone crashes that kill people and cause serious injuries and lifelong disabilities.

Well-placed red-light cameras save lives. Phoenix Police found that the city's cameras reduced red-light-running crashes by 31% at the intersections where they were used. In the directions the cameras faced, crashes dropped by 57%.

Research from another city found a nearly 30% drop in injury crashes and an even bigger decline in dangerous T-bone crashes. There's a fair debate about whether some cities use too many speed cameras. Some do. Cities shouldn't use speed cameras mainly to raise money. But this proposition doesn't make that distinction.

It takes an important safety tool, red-light cameras, away from every city and town in Arizona that doesn't already have them.

Had the proposition focused only on speed cameras, we probably wouldn't have written this. But Proposition 319 also attacks the red-light cameras that prevent serious injuries and save lives.

Please vote no on Prop 319. The life saved by a red-light camera might be yours, someone in your family or a friend… and there's solid evidence that they work.

Will Humble, Executive Director, Arizona Public Health Association, Phoenix
Sponsored by Arizona Public Health Association

Vote NO on the Arizona Prohibit New Photo Traffic Enforcement Systems Measure for the following reasons:

1) Traffic fatalities in Arizona have increased 70% since 2010 per Arizona's Strategic Highway Safety Plan. On average, every day 3 people are killed and 10 people seriously injured on roads in Arizona. Many of these crashes can be traced back to drivers speeding and/or disregarding traffic signals. This public health crisis can be addressed using effective tools/strategies statistically proven to reduce crash risk. Photo traffic enforcement systems are one such tool, resulting in crash reductions of 20%-54% per FHWA's Proven Safety Countermeasures. While photo enforcement may not be the right safety solution everywhere, there are places and circumstances where it can be a very effective tool at improving safety. Let's not prohibit access to a potentially effective tool for improving safety.

2) The ballot measure text is misleading in that it suggests photo enforcement is not done by trained law enforcement officers. This is not accurate. A trained law enforcement officer reviews and confirms photo evidence before issuing a citation.

3) Our communities should be able to address localized traffic safety issues using the tools they consider appropriate for the circumstance. This ballot measure is an overreach by the state legislature to try to assert state control over localized safety issues.

If you want more tools for improving safety to increase the chances of you or your loved ones arriving home safely when you travel, vote NO on this ballot measure.

Michael Grandy, Traffic Engineer and Road Safety Professional, Gilbert

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Spelling, grammar and punctuation were reproduced as submitted in the "for" and "against" arguments.

THE NEXT LIFE A RED LIGHT CAMERA SAVES COULD BE YOURS

This legislative referral is an attack on public safety, plain and simple. One of the most important functions of state government is to ensure the health and safety of Arizonans. While we're never happy to get a ticket, photo radar cameras are proven, time-tested ways to calm traffic and prevent serious injury and death.

If you know anyone who has suffered serious injuries because of a speeding car (we do), or been killed by a careless driver (we do), you will vote NO. If you haven't had the tragic experience of losing someone to a preventable traffic accident, we hope you'll vote NO to protect your loved ones from that fate.

Arguably, intersections are the most dangerous parts of a roadway — and red-light cameras at intersections reduce fatal crashes by 21% (Insurance Institute for Highway Safety), mostly by improving driver attentiveness. Other studies show reductions of up to 29%. The jury is in: speeding up to get through a red light causes serious crashes and fatalities that are preventable.

With regard to traffic cameras, one recent study in Philadelphia estimated that monitoring a particularly dangerous roadway prevented up to 20 crashes per month and 1.4 monthly deaths. In Arlington County, Virginia, speed cameras near elementary schools resulted in significant declines in accidents.

The intent of traffic cameras is to prevent serious accidents, not to generate expensive tickets. When we see an upcoming camera on the roadway, we slow down. When we know a red light camera is ahead, we actually stop instead of trying to beat it. People we know and love would likely still be alive if Arizona adhered to proven safety standards. Please vote NO.

Melinda Iyer, Co-Director, Civic Engagement Beyond Voting, Phoenix and Catherine Sigmon, Co-Director, Civic Engagement Beyond Voting, Tempe
Sponsored by Civic Engagement Beyond Voting

The ITE Arizona Section urges voters to vote NO on SCR 1004.
Automated traffic enforcement is a proven safety tool that helps reduce speeding, red-light running, serious injuries, and fatalities. This measure would take that tool away from local communities, even when they determine it is appropriate for their own streets, school zones, and high-crash intersections.
Citizens of Arizona are killed or seriously injured on our roadways every day. In 2024, more than 1,100 people were killed in crashes statewide, including 37 children under the age of 14. Red-light running and speeding are not minor violations. They are dangerous behaviors that put drivers, pedestrians, bicyclists, and children at risk.
Arizona communities have already seen positive safety results from photo enforcement. Phoenix experienced a 36% reduction in red-light running crashes after installing cameras at selected intersections. Paradise Valley, Scottsdale, and Mesa have also reported similar safety benefits, including fewer crashes and reduced speeds in school zones.
National research supports these local findings. Cities with active camera programs have experienced reductions in fatal red-light running crashes and fatal crashes at signalized intersections. Conversely, cities that ended camera programs saw increases in these types of crashes.
Technology helps make our lives safer and more efficient. Automated enforcement is not the only solution to traffic safety, but it is one important tool that can help reduce dangerous driving behavior and prevent serious crashes.
Photo enforcement programs should be implemented thoughtfully, fairly, and transparently, with clear oversight and accountability. Banning new systems outright would remove an effective safety option from local communities. Arizona should allow local jurisdictions to decide which tools are appropriate for their own streets and residents.
Please vote NO on SCR 1004.

Germaine Calimlim, Traffic Engineer, Institute of Transportation Engineers Arizona Section, Phoenix
Sponsored by Institute of Transportation Engineers Arizona Section

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Vote NO on Proposition 319 to protect Arizona road users.

At AAA Arizona, we believe photo enforcement should never be used as a "speed trap" to fill local budget gaps. AAA actively fights to ensure these programs remain transparent, data-driven, and revenue-neutral.

As Arizona grows and our roads become more crowded, we cannot afford a sweeping ban on a tool that, when implemented responsibly, is proven to save lives.

This technology delivers results. The Insurance Institute for Highway Safety found red-light cameras cut fatal red-light crashes by 21%. They also stop violent, high-speed side impacts—the crashes most likely to end in tragedy.

Proposition 319 goes too far. It permanently bans photo enforcement for any city without a program running by the end of the year. This strips local communities of their basic ability to respond to future traffic safety crises and protect road users.

The stakes couldn't be higher. The AAA Foundation for Traffic Safety recently warned that our roads are becoming more dangerous. Pedestrians in Arizona are nearly twice as likely to be killed in a road collision as the rest of the country.

Voting to ban this life-saving technology will lead to more preventable tragedies on Arizona roads.

For safer Arizona roads, vote NO on Proposition 319.

Michelle Donati, Director, Government Affairs, AAA Arizona, Phoenix
Sponsored by AAA Arizona

SCR 1004 – Is a proposed ballot measure to limit the use of automated traffic enforcement cameras (such as speed and red-light cameras) statewide. Both red light and speed cameras have proven themselves time and time again as both effective and necessary. The number of police officers available to enforce these types of offenses require the officer to observe the infraction. We don't have the number of officers required, but we have the technology to accomplish the same level of control for a significantly less amount of money. Representative Rodgers is the sponsor of this legislation, someone censored by her own colleagues for her false election claims. She has also railed against red-light cameras for years. Do not support Fake Elector Rodgers. Vote No on Proposition SCR 1004.

Timothy Everhard, Director, Arizonans for Freedom, Peoria

BALLOT FORMAT

PROPOSITION 319

REFERRED TO THE PEOPLE BY THE LEGISLATURE RELATING TO PHOTO ENFORCEMENT SYSTEMS

OFFICIAL TITLE
AMENDING SECTION 28-1201, ARIZONA REVISED STATUTES; AMENDING TITLE 28, CHAPTER 3, ARTICLE 21, ARIZONA REVISED STATUTES, BY ADDING SECTION 28-1207.

DESCRIPTIVE TITLE
PROHIBITS STATE AGENCIES AND LOCAL GOVERNMENTS FROM USING PHOTO ENFORCEMENT SYSTEMS FOR TRAFFIC ENFORCEMENT UNLESS PROVIDED BY CONTRACT AS OF DECEMBER 31, 2026; REQUIRES LOCAL GOVERNMENTS TO OBTAIN VOTER APPROVAL TO CONTINUE THEIR USE.

A "yes" vote shall have the effect of: (1) prohibiting state agencies and local governments from using photo enforcement systems to identify violators of traffic laws unless the agency or government contracts to use those systems by December 31, 2026; and (2) requiring local governments to obtain voter approval of existing photo enforcement systems at the next regular general election and every 10 years afterward to continue using photo enforcement systems.	**YES** ☐
A "no" vote shall have the effect of maintaining the current laws governing photo enforcement systems.	**NO** ☐